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LINE 16

25-CIV-09820

ROSALIE BACANI VS. HISHAM HASAN, ET AL.

ROSALIE BACANI  
HISHAM HASAN

SCOTT MAURER  
PRO SE

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MOTION TO COMPEL ARBITRATION AND DISMISS COMPLAINT

**TENTATIVE RULING:**

The court DENIES defendant's motion to compel arbitration.

Counsel for plaintiff Rosalie Bacani states that he was never served with the motion, but only discovered it when he checked the online docket to see if an answer had been filed. (Maurer Decl., ¶ 2.) While proper notice is required for the court to have jurisdiction to hear a motion (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed]), plaintiff has filed a substantive response and has provided no evidence of prejudice. Thus, plaintiff has waived the procedural defect. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.)

California law strongly favors arbitration finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Defendant bear the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

A motion to compel arbitration triggers a three-step framework that shifts the burden of production between the parties. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) First, the moving party bears an initial burden of producing prima facie evidence of an agreement to arbitrate. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754–755); Cal. Rules of Court, rule 3.1330.) If the moving party meets this burden, step two shifts the burden to the party opposing arbitration to identify a factual dispute as to the agreement's existence. (*Ibid.*)

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If a dispute is identified, the third and final step returns the burden to the moving party to prove, by a preponderance of the evidence, a valid arbitration agreement between the parties. (*Gamboa, supra*, at p. 165.)

Defendant does not include any declaration but simply cites the language claimed to be the arbitration agreement, to wit:

Section 14.17 WAIVER OF JURY TRIAL. EACH PARTY ACKNOWLEDGES AND AGREES THAT ANY CONTROVERSY THAT MAY ARISE UNDER THIS AGREEMENT, INCLUDING ANY INDIVIDUAL TRANSACTION DOCUMENTS OR EXHIBITS, SCHEDULES, ATTACHMENTS AND APPENDICES ATTACHED TO THIS AGREEMENT, IS LIKELY TO INVOLVE COMPLICATED AND DIFFICULT ISSUES AND, THEREFORE, EACH SUCH PARTY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LEGAL ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT, INCLUDING ANY INDIVIDUAL TRANSACTION DOCUMENTS, EXHIBITS, SCHEDULES, ATTACHMENTS OR APPENDICES ATTACHED TO THIS AGREEMENT, OR THE TRANSACTIONS CONTEMPLATED HEREBY.

(Motion to Compel at p. 3.) Defendant states that the agreement is attached as Exhibit A, but it is not. As plaintiff points out, this language cited in defendant's brief shows only an agreement to waive a jury trial. Courts hear both jury and court trials and the parties may expressly waive their right to a jury trial. There is no agreement to arbitrate this case. Thus, defendant has not met the prima facie burden to show the existence of a valid arbitration agreement. Plaintiff attaches the entire agreement and there is nothing in the agreement which has any additional language regarding arbitration. (Maurer Decl., ¶3, Ex. 1.) To the contrary, the agreement requires litigation in a California court. (*Id.*, Ex. 1, § 14.16 [choice of forum: Each party submits to jurisdiction in California and "Each Party irrevocably and unconditionally submits to the exclusive jurisdiction of such courts and agrees to bring any such action, litigation, or proceeding only in the State of California."].) The court notes, but does not decide the issue, that "California law does not allow predispute jury trial waivers" (*EpicentRx, Inc. v. Superior Court* (2025) 18 Cal.5th 58, 69 [citing *Grafton Partners v. Superior Court* (2005) 36 Cal.4th 944, 956].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 17

25-CLJ-00768

BANK OF AMERICA, N.A. VS. ROBERTO RAFAEL SEMINARIO

BANK OF AMERICA, N.A.  
ROBERTO RAFAEL SEMINARIO

ANTHONY DIPIERO  
PRO SE

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MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

**TENTATIVE RULING:**

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

On May 2, 2025, plaintiff served by mail defendant Roberto Rafael Seminario with requests for admissions. (Declaration of Brian Langedyk, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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